

THE GAZETTE OF INDIA
EXTRAORDINARY
PART –III – SECTION 4
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 22nd March, 2019

SECURITIES AND EXCHANGE BOARD OF INDIA (CUSTODIAN) (AMENDMENT)
REGULATIONS, 2019

No. SEBI/LAD-NRO/GN/2019/04. – In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following Regulations to further amend the Securities and Exchange Board of India (Custodian) Regulations, 1996, namely :-

1. These Regulations may be called the Securities and Exchange Board of India (Custodian) (Amendment) Regulations, 2019.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Custodian) Regulations, 1996 –
 - (1) regulation 9A shall be substituted with the following, namely,-

“Period of Validity

9A. Every certificate granted under sub-regulation (3) of regulation 8, shall be valid unless it is suspended or cancelled by the Board.”;
 - (2) regulation 9B shall be omitted;

(3) in Second Schedule,

(i) in the title, the words and expression “3(3), 8 and 9(C)” shall be substituted with the words and expression “3(3) and 8”;

(ii) in Part A, Explanation II shall be omitted.

Sd/-

AJAY TYAGI

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnotes:

(1) The Securities and Exchange Board of India (Custodian) Regulations, 1996, the Principal Regulations were published in the Gazette of India on May 16, 1996 vide S.O. No. 344(E).

(2) The Securities and Exchange Board of India (Custodian) Regulations, 1996 were subsequently amended –

- (i) on December 4, 1996 by the Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 1996 vide S.O. No.851(E).
- (ii) on October 17, 1997 by the Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 1997 vide S.O. No.732 (E).
- (iii) on January 5, 1998 by the Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 1998 vide S.O. No.17 (E).
- (iv) on March 28, 2000 by the Securities and Exchange Board of India (Appeal to the Securities Appellate Tribunal) (Amendment) Regulations, 2000 vide S.O. No.278(E).
- (v) on May 29, 2001 by the Securities and Exchange Board of India (Investment Advice by Intermediaries) (Amendment) Regulations, 2001 vide S.O. No.476(E).

- (vi) on September 27, 2002 by the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002 vide S.O. No.1045(E).
- (vii) on March 10, 2004 by the Securities and Exchange Board of India (Criteria for Fit and Proper Person) Regulations, 2004 vide S.O. No. 398(E).
- (viii) on January 12, 2006 by the Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 2006 vide S.O. No.39 (E).
- (ix) on October 31, 2006 by the Securities and Exchange Board of India (Custodian of Securities) (Second Amendment) Regulations, 2006 vide No. S.O.1860(E).
- (x) on March 31, 2008 by the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 2008 vide F.No.11/LC/GN/2008/21669.
- (xi) on July 4, 2008 by the Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 2008 vide No.11/LC/GN/15/2008/130775.
- (xii) on June 19, 2009 by the Securities and Exchange Board of India (Facilitation of Issuance of Indian Depository Receipts) (Amendment) Regulations, 2009 vide No. LAD-NRO/GN/2009-2010/10/166936.
- (xiii) on June 29, 2009 by the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 2009 vide No. LAD-NRO/GN/2009-10/11/167759.
- (xiv) on May 23, 2014 by the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 2014 vide No. LAD-NRO/GN/2014-15/03/1089.
- (xv) on March 6, 2017 by the Securities and Exchange Board of India (Payment of Fees and Mode of Payment) (Amendment) Regulations, 2017 vide notification no. SEBI/LAD/NRO/GN/2016-17/037 read with notification no. SEBI/LAD/NRO/GN/2016-17/38 dated March 29, 2017.
- (xvi) on January 01, 2019 by Securities and Exchange Board of India (Custodian of Securities) (Amendment) Regulations, 2018 vide notification no. SEBI/LAD-NRO/GN/2019/01
